

Sangita Daimary vs Anjan Rabha on 13 October, 2023

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Bench: Kalyan Rai Surana

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GAHC010051322023

THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)

Case No. : Tr.P.(C)./20/2023

SANGITA DAIMARY
D/O- SRI SUKRAM DAIMARI, R/O- SIRAJULI PATHAR, P.O. NO. 2 PIRAKATA,
DHEKIAJULI, P.S. DHEKIAJULI, DIST. SONITPUR, ASSAM

VERSUS

ANJAN RABHA
S/O- LATE RUPDHAR RABHA, R/O- DWAPARA, PASCHIM BORAGAON, P.S.
BORAGAON, P.O. DEVKOTANAGAR, DIST. KAMRUP(M), ASSAM

Advocate for the Petitioner : MR. P J SAIKIA

Advocate for the Respondent :

BEFORE
HONOURABLE MR. JUSTICE KALYAN RAI SURANA

ORDER

Date : 13-10-2023 Heard Mr. PJ Saikia, learned counsel for the petitioner. None appears on call for the respondent.

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2. The petitioner who is the estranged wife of the respondent is seeking transfer of the matrimonial proceedings of FC (Civil) case no.169/2023 from the Court of learned Principal Judge, Family Court No.2, Kamrup (Metro), Guwahati to the Court of learned District Judge, Sonitpur.

3. The learned counsel for the petitioner has referred to the statement made by the respondent has been in paragraph 10 of the application for restitution of conjugal rights that the respondent had been transferred and posted at Tezpur, Sonitpur and since 16.12.2022, he has joined the duty and continuing to be posted since then. Accordingly, it is submitted that although the respondent is doing duty in the district of Sonitpur the proceedings for restitution of conjugal rights was filed at Guwahati. It is submitted that the petitioner who is not employed is a resident of Sirajuli Pathar under Dhekiajuli police station in the district of Sonitpur and accordingly, it is submitted that it would be very inconvenient for her to participate in the proceedings before the Court at Guwahati.

4. It is noted that although process was served on the respondent and he had not appeared. The reasons assigned by the petitioner as referred hereinbefore is found to be sufficient cause for inconvenience the petitioner to travel for the matrimonial proceedings from Guwahati to Tezpur by incurring expenditure for travel and stay at Guwahati. Accordingly, this application for transfer which is filed under section 24 CPC stands allowed.

5. The proceedings of FC (Civil) no.169/2023 filed under section 9 of the Hindu Marriage Act stands transferred from the Court of learned Principal Judge, Page No.# 3/3 Family Court no.2, Kamrup Metro, Guwahati to the Court of learned District Judge, Sonitpur, Tezpur.

6. The petitioner shall produce a certified copy of the order before the learned Principal Judge, Family Court no.2, Kamrup Metro, Guwahati to bring the order to the notice of the said learned Court. On receipt of the said order, the learned Principal Judge, Family Court no.2, Kamrup Metro, Guwahati shall fix a date for the parties to appear before the Court of learned District Judge, Sonitpur, Tezpur and have the order seen by the learned counsel for the responded-husband (petitioner in the said trial Court proceedings).

7. On the date fixed by the learned Principal Judge, Family Court no.2, Kamrup Metro, Guwahati for appearance before the learned District Judge, Sonitpur, Tezpur, the petitioner herein shall appear before the transferee Court and await for further orders of the said learned Court.

JUDGE Comparing Assistant